

2. 1:30 PM CASE NUMBER: C23-03161
CASE NAME: ALISCHA WILSON VS. INTEX RECREATION CORP.,
FILED BY:
TENTATIVE RULING:

This CMC is **vacated**. No appearance is required at the hearing on August 26, 2026.

3. 1:30 PM CASE NUMBER: C24-03039
CASE NAME: MELANIE ROSE VS. FIRST WALNUT CREEK MUTUAL

FILED BY:
TENTATIVE RULING:
This CMC is **vacated**.

4. 1:30 PM CASE NUMBER: C26-00183
CASE NAME: AURA MANAGEMENT CO. VS. ERIC DOLL

FILED BY:
TENTATIVE RULING:

This CMC trails the hearing for Lines 18 and 19. The parties are ordered to appear via Zoom for the CMC unless the tentative rulings are unopposed for both motions.

5. 1:30 PM CASE NUMBER: C26-00192
CASE NAME: ATHENA PLASSAS VS. PLANNED PARENTHOOD SHASTA-DIABLO INC

FILED BY:
TENTATIVE RULING:

See Line 20. This CMC is **vacated**. No appearance is required at the hearing on August 26, 2026.

Discovery Law & Motion

6. 1:30 PM CASE NUMBER: C24-00285
CASE NAME: PABLO BELTRAN DIAZ VS. IMPORT MOTORS, INC.
COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES, SET NUMBER RE: IMPORT MOTORS, INC.
FILED BY: BELTRAN DIAZ, PABLO ROBERTO
TENTATIVE RULING:

Summary

This tentative ruling is for Lines 6, 7 and 8. All eight discovery motions calendared for August 26, 2026, and those calendared for September 2, and September 16, 2026 are **vacated** and referred to a discovery referee as set forth herein. No appearance is required at the August 26, 2026 hearing.

Background

This is a personal injury case arising out of an alleged collision between an automobile and a bicycle. Plaintiff Pablo Beltran (“Plaintiff”) was riding the bicycle; Defendant Noelle Lucas (“Lucas”) was the alleged driver of the auto; and Defendant Import Motors Inc. and Defendant Sojitz Automotive Group (collectively, Defendants) are Lucas’ alleged employer.

Plaintiff has filed eight separate motions to compel discovery, four against Import Motors and four against Lucas. As to each defendant, there are motions concerning form interrogatories; special interrogatories; requests for production; and requests for admission. The separate statements on the eight motions alone run many hundreds of pages. Defendants have filed no responsive separate statements, but have filed a single, combined opposition brief. Although all eight motions were filed on the same date, they are calendared for three separate hearing dates – August 26, September 2, and September 16, 2026. This case is set for trial on October 26, 2026.

The court **vacates** all eight (8) of the foregoing hearings on these discovery motions, and any other subsequently filed discovery motion, and appoints, *sua sponte*, a Discovery Referee to hear all of the foregoing discovery motions, and any and all discovery motions, filed by the Plaintiff in this litigation as set forth in this tentative ruling.

Analysis

Meet and Confer Requirements

The parties to a discovery dispute are required to meet and confer, in a reasonable and good faith attempt, to informally resolve any dispute concerning discovery. See Cal. Code Civ. Proc. §§ 2016.040, and *Golf & Tennis Pro Shop, Inc. v. Sup. Ct.* (Frye) (2022) 84 Cal.App.5th 127, 138. In addition to the statutory requirements that obligate counsel to meet and confer on a discovery motion, local rules require the same. See L.R. 2.121(e). Additionally, the Court’s local rules states that motions “should be filed sparingly, in good faith and when the issue(s) cannot be otherwise resolved.” L.R. 2.122(c). Cal. Code of Civ. Proc. § 2016.040 requires, at a minimum, **attorneys to talk in person, by telephone, or by video conference to work out issues, rather than just send written** correspondence with an invitation to “call me if you should have any further questions or comments,” which Courts have found to be insufficient. *Jovita Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 429, 431-433.

The court is not convinced that the Parties have complied with their statutory obligation to meet and confer. Here, the declarations presented to the court suggests Plaintiff’s counsel only sent “meet and confer” letters and alluded to her office “following up” before filing these motions. Indeed, the record does not reflect that the attorneys actually talked in person, by telephone or by video conference pursuant to statutory requirements before pursuing these eight motions. Accordingly, the Court is inclined to dismiss all eight motions for failing to comply with the fundamental practice of “meeting and conferring” prior to pursuing discovery motions. See ruling below for further instructions.

Referral to Discovery Referee

Moreover, this Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. "Motions to compel should be considered a last resort when trying to prepare a case for trial." California Civil Discovery Practice (4th ed., CEB) § 15.32[C]. Additionally, "trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes." California Civil Discovery Practice (4th ed., CEB) § 15.38.6. Here, Counsel appeared to have met and conferred but are unable to resolve the discovery disputes before informally.

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Code Civ. Proc., §§ 639(a)(5), (b)–(d); Cal. Rules of Court, rules 3.920–3.932; *Lu v. Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

The Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. The Court finds that the multiple discovery motions, the existing disputes raised by the pending discovery motions, and the nature of the underlying legal issues require the appointment of a Discovery Referee. Code Civ. Proc., § 639(a)(5) states: "When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon."

The Court finds here that a discovery referee is necessary to hear and determine all disputes relevant to discovery. There are eight motions filed Plaintiff. These motions and oppositions filed to date consist of over 1,400 pages. This Department manages a docket of 2700 active cases, including complex, class action, PAGA, CEQA and construction defect matters. The civil law division of this Court manages 25,000 cases over six bench officers. The Court finds that Counsel are unable to effectively meet and confer to arrive at an informal resolution of the discovery disputes.

After considering the moving and opposition papers submitted by Counsel, and analyzing the applicable statutory and decisional authorities, the Court finds good cause to make the following findings, orders and rulings.

Ruling

1. A Discovery Referee is appointed. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Code Civ. Proc., § 639.
2. The Discovery Referee shall hear all disputes relevant to discovery in this case and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear all motions calendared for August 26, September 2, and September 16, 2026. The hearings for all eight discovery motions are **vacated** from Department 16's calendar and are referred for further hearing to the Discovery Referee. All discovery motions filed subsequent to this date

shall be heard by the Discovery Referee.

3. By no later than August 31, 2026 the Parties are ordered to meet and confer pursuant to Code Civ. Proc. § 639(b) or (c) and shall submit a stipulation and proposed order listing the proposed Discovery Referee to the court along with the proposed referee's curriculum vitae and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by August 31, 2026, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, emailed to dept16@contracosta.courts.ca.gov by Wednesday, September 2, 2026. The Court will select one of the proposed referees by minute order. Code Civ. Proc. § 640(b). The Discovery Referee will be requested to sign the Judicial Council ADR-110 Form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 Form.
4. No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50/50 between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.
5. Plaintiff's Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc., § 639, that conforms to this ruling, approved as to form by Defendants' Counsel, no later than five (5) days after the date of this order.
6. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment.
7. The Clerk of Court shall vacate Plaintiff's discovery motions calendared for August 26, September 2, and September 16, 2026. All future discovery disputes shall be referred to the Discovery Referee until further order of the Court.
8. The Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 2016.040 **in person, by telephone, or by video conference** to discuss the dispute for all eight discovery motions. Counsel shall file and serve a declaration specifying in detail how they have complied with this statutory requirement, including the date, time and duration of the meet and confer efforts no later than September 18, 2026.
9. No appearance is required at the hearing on August 26, 2026.

7. 1:30 PM CASE NUMBER: C24-00285

CASE NAME: PABLO BELTRAN DIAZ VS. IMPORT MOTORS, INC.

COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET NUMBER TWO - NOS. 44-98

RE: IMPORT MOTORS, INC.

FILED BY: BELTRAN DIAZ, PABLO ROBERTO

TENTATIVE RULING:

See Line 6.